

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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RAMAR PINDER

Plaintiff,

-against-

THE CITY OF NEW YORK, SERGEANT JOHN
ZANCA, Shield No. 1700, POLICE OFFICER MICHAEL
ZWEIFLER, Shield No. 14406, POLICE OFFICER
ANTONIO ZORRILLA, Shield No. 10893, DETECTIVE
AMANDEEP KAUR, Shield No. 5128, POLICE
OFFICER KYLE BARNETT, Shield No. 24594, POLICE
OFFICER DENIS KOSTA, DETECTIVE JOHN
BUCHANAN, Shield No. 4528, SERGEANT JOSEPH
KOSEK, Shield No. 1427, DETECTIVE EDMOND
McDONALD, Shield No. 3445, POLICE OFFICER
SARAH SHATTUCK, POLICE OFFICER JARRETT
NADAL, and POLICE OFFICERS JOHN DOES #s 1- 10
(names and numbers of whom are unknown at present),

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
March 5, 2020

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
SERGEANT JOHN ZANCA, Shield No. 1700, 79th Pct., 263 Tompkins Ave, Brooklyn, NY 11216
POLICE OFFICER MICHAEL ZWEIFLER, Shield No. 14406, 79th Pct., 263 Tompkins Ave, Brooklyn, NY 11216
POLICE OFFICER ANTONIO ZORRILLA, Shield No. 10893, 79th Pct., 263 Tompkins Ave, Brooklyn, NY 11216
DETECTIVE AMANDEEP KAUR, Shield No. 5128, Gun Violence Suppression Division
POLICE OFFICER KYLE BARNETT, Shield No. 24594, 318 Command
POLICE OFFICER DENIS KOSTA, Evidence Collection Team
DETECTIVE JOHN BUCHANAN, Shield No. 4528, Gun Violence Suppression Division
SERGEANT JOSEPH KOSEK, Shield No. 1427, 318 Command
DETECTIVE EDMOND McDONALD, Shield No. 3445, 81st Pct. Detective Squad
POLICE OFFICER SARAH SHATTUCK, 79th Pct., 263 Tompkins Ave, Brooklyn, NY 11216
POLICE OFFICER JARRETT NADAL, 79th Pct., 263 Tompkins Ave, Brooklyn, NY 11216

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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RAMAR PINDER

Plaintiff,

-against-

INDEX NO.:

VERIFIED COMPLAINT

THE CITY OF NEW YORK, SERGEANT JOHN ZANCA, Shield No. 1700, POLICE OFFICER MICHAEL ZWEIFLER, Shield No. 14406, POLICE OFFICER ANTONIO ZORRILLA, Shield No. 10893, DETECTIVE AMANDEEP KAUR, Shield No. 5128, POLICE OFFICER KYLE BARNETT, Shield No. 24594, POLICE OFFICER DENIS KOSTA, DETECTIVE JOHN BUCHANAN, Shield No. 4528, SERGEANT JOSEPH KOSEK, Shield No. 1427, DETECTIVE EDMOND McDONALD, Shield No. 3445, POLICE OFFICER SARAH SHATTUCK, POLICE OFFICER JARRETT NADAL, and POLICE OFFICERS JOHN DOES #s 1- 10 (names and numbers of whom are unknown at present),

JURY TRIAL DEMANDED

Defendants.

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Plaintiff RAMAR PINDER, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On December 6, 2018 at approximately 6:00 p.m., plaintiff was lawfully present in the vicinity of Lewis Avenue and DeKalb Avenue, Brooklyn, New York, when the individually named defendant police officers unlawfully stopped, questioned, frisked, searched, illegally seized, falsely imprisoned, and falsely arrested plaintiff without reasonable suspicion, probable cause or any legal justification, by, among things. Thereafter, plaintiff was unlawfully handcuffed and transported against his will to the 79th Precinct where plaintiff was unlawfully searched, interrogated, fingerprinted, photographed, and detained in a holding cell for many hours. Eventually, plaintiff was transported to Kings County Central Booking where the unlawful detention continued for many additional hours. On December 7, 2018, approximately

24 hours after plaintiff was initially seized by defendants, plaintiff was released from custody without appearing on court or being charged with a crime because the Kings County District Attorney's Office declined to prosecute plaintiff because defendants lacked probable cause to arrest and/ or prosecute plaintiff. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, falsely imprisoned, and falsely arrested plaintiff in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff RAMAR PINDER is a resident of the state of New York.
3. SERGEANT JOHN ZANCA, Shield No. 1700, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
4. SERGEANT JOHN ZANCA, Shield No. 1700, was at all times relevant herein, assigned to the 79th Precinct.
5. SERGEANT JOHN ZANCA, Shield No. 1700, is being sued in his individual and official capacity.
6. POLICE OFFICER MICHAEL ZWEIFLER, Shield No. 14406, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
7. POLICE OFFICER MICHAEL ZWEIFLER, Shield No. 14406, is and was at all times relevant herein, assigned to the 79th Precinct.
8. POLICE OFFICER MICHAEL ZWEIFLER, Shield No. 14406, is being sued in his individual and official capacity.
9. POLICE OFFICER ANTONIO ZORRILLA, Shield No. 10893, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
10. POLICE OFFICER ANTONIO ZORRILLA, Shield No. 10893, was at all times relevant herein, assigned to the 79th Precinct.
11. POLICE OFFICER ANTONIO ZORRILLA, Shield No. 10893, is being sued in his individual and official capacity.
12. DETECTIVE AMANDEEP KAUR, Shield No. 5128, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
13. DETECTIVE AMANDEEP KAUR, Shield No. 5128, is and was at all times relevant herein, assigned to the Gun Violence Suppression Division.

14. DETECTIVE AMANDEEP KAUR, Shield No. 5128, is being sued in his individual and official capacity.

15. POLICE OFFICER KYLE BARNETT, Shield No. 24594, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

16. POLICE OFFICER KYLE BARNETT, Shield No. 24594, was at all times relevant herein, assigned to the 318 Command.

17. POLICE OFFICER KYLE BARNETT, Shield No. 24594, is being sued in his individual and official capacity.

18. POLICE OFFICER DENIS KOSTA, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

19. POLICE OFFICER DENIS KOSTA, was at all times relevant herein, assigned to the Evidence Collection Team.

20. POLICE OFFICER DENIS KOSTA, is being sued in his individual and official capacity.

21. DETECTIVE JOHN BUCHANAN, Shield No. 4528, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

22. DETECTIVE JOHN BUCHANAN, Shield No. 4528, is and was at all times relevant herein, assigned to the Gun Violence Suppression Division.

23. DETECTIVE JOHN BUCHANAN, Shield No. 4528, is being sued in his individual and official capacity.

24. SERGEANT JOSEPH KOSEK, Shield No. 1427, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

25. SERGEANT JOSEPH KOSEK, Shield No. 1427, was at all times relevant herein, assigned to the 318 Command.

26. SERGEANT JOSEPH KOSEK, Shield No. 1427, is being sued in his individual and official capacity.

27. DETECTIVE EDMOND McDONALD, Shield No. 3445, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

28. DETECTIVE EDMOND McDONALD, Shield No. 3445, is and was at all times relevant herein, assigned to the 81st Precinct Detective Squad.

29. DETECTIVE EDMOND McDONALD, Shield No. 3445, is being sued in his individual and official capacity.

30. POLICE OFFICER SARAH SHATTUCK, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

31. POLICE OFFICER SARAH SHATTUCK, was at all times relevant herein, assigned to the 79th Precinct.

32. POLICE OFFICER SARAH SHATTUCK, is being sued in his individual and official capacity.

33. POLICE OFFICER JARRETT NADAL, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

34. POLICE OFFICER JARRETT NADAL, is and was at all times relevant herein, assigned to the 79th Precinct.

35. POLICE OFFICER JARRETT NADAL, is being sued in his individual and official capacity.

36. Defendants Police Officers John Does #s 1-10 are and were at all times relevant times herein officers, employees, and agents of the New York City Police Department.

37. Defendants Police Officers John Does #s 1-10 are being sued in their individual and official capacities.

38. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

39. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

40. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a Notice of Claim with the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and pursuant to notice by defendant plaintiff appeared for a Hearing

was held by the City of New York City of New York plaintiff appeared for a hearing pursuant to General Municipal Law Section 50-h on September 27, 2019.

41. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

42. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

43. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

44. . On December 6, 2018, at approximately 6:00 PM plaintiff and a few acquaintances were lawfully present in the vicinity of Lewis Avenue and Dekalb Avenue, Brooklyn, New York about to get into an Uber cab they ordered to take them home when the individually named defendant police officers unlawfully approached, stopped, questioned, frisked, and searched plaintiff without reasonable suspicion or probable cause or any legal justification.

45. At no time relevant herein did plaintiff commit aa crime or violate the law in any way, nor did the police officers possess an objective factual basis to establish probable cause to believe plaintiff violated the law or committed a crime.

46. The individually named defendant police officers claim that they stopped at the location for the purpose of stopping the Uber cab that plaintiff was about to get into because the cab was double parked.

47. However, instead of only addressing, stopping and detaining the Uber cab driver, defendants seized the Uber cab driver as well as plaintiff and his acquaintances.

48. The defendants lacked any legal basis to stop and detain plaintiff and his friends.

49. Defendants unlawfully frisked and searched plaintiff, plaintiff's acquaintances and the Uber cab driver, without reasonable suspicion, probable cause or any legal justification.

50. At no time relevant herein did defendants recover any illegal drugs, weapons, or contraband from plaintiff's possession, custody or control.

51. Defendants allege that they recovered a weapon that was concealed inside of a pocket on a jacket worn by one of the other individuals searched and seized by the officers.

52. At no time relevant herein did plaintiff observe defendants recover a weapon from any of the individuals searched by defendants, and plaintiff does not know which individual the officers claim they recovered the weapon from.

53. Although defendants did not recover any illegal drugs, weapons or contraband from plaintiff's possession, custody or control they unlawfully handcuffed and falsely arrested plaintiff without probable cause or legal justification.

54. In fact, defendants arrested the Uber driver and all of plaintiff's acquaintances that were about to get into the Uber cab with plaintiff when defendants arrived at the scene.

55. Defendants transported plaintiff to the 79th precinct against his will.

56. Defendants unlawfully searched, fingerprinted, photographed, and interrogated plaintiff outside of the presence of an attorney at the 79th Precinct.

57. Defendants unlawfully detained plaintiff in a filthy holding cell at the 79th precinct for many hours,

58. After plaintiff was unlawfully detained in a holding cell at the 79th Precinct for numerous hours, defendants transported him against his will to Kings County Central Booking whereat the unlawful detention continued.

59. On December 7, 2018, approximately 24 hours after defendants initially detained plaintiff, plaintiff was released from Kings County Central Booking without appearing before a judge or being charged with committing a crime.

60. Plaintiff was released from custody without being charged with a crime because the Kings County District Attorney's Office declined to prosecute plaintiff because the defendants could not provide any objective evidence to establish probable cause to arrest and/or prosecute plaintiff for committing a crime.

61. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights are liable to plaintiff for their failure to intervene.

62. Plaintiff suffered severe emotional distress stress caused by defendants' unlawful stop, question, frisk, searches, false arrest, and false imprisonment.

63. At no time relevant herein did plaintiff commit a crime or violate the law in any manner, nor did the defendant police officers possess an objective factual basis to establish probable cause to believe he committed a crime or violated the law in any manner.

64. The unlawful stop, question, frisk, search, false arrest, and false imprisonment of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

65. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 64 with the same force and effect as if more fully set forth at length herein.

66. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, seized, searched, falsely arrested, falsely imprisoned, unlawfully interrogated, and denied plaintiff the right to due process/ a fair trial without probable cause, in violation of plaintiff's right to be free from an unreasonable seizure under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

67. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

68. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 67 with the same force and effect as if more fully set forth at length herein.

69. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

70. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

71. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

72. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

73. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

74. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 73 with the same force and effect as if more fully set forth at length herein.

75. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

76. The conduct of defendants in stopping, frisking, and searching, plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

77. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

78. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

79. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

80. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

81. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 80 with the same force and effect as if more fully set forth at length herein.

82. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein, and terminated plaintiff's freedom of movement through means intentionally applied.

83. Defendants lacked probable cause to search plaintiff.

84. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

85. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

86. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

87. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

88. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 87 with the same force and effect as if more fully set forth at length herein.

89. By unlawfully stopping, questioning, frisking, searched, falsely arresting plaintiff and then attempting to get a criminal prosecution initiated against plaintiff, defendants each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

90. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

91. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

92. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

93. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Intentional Infliction of Emotional Distress

94. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 93 with the same force and effect as if more fully set forth at length herein.

95. The above-described conduct by unlawfully stopping, questioning, frisking, searched, falsely arresting plaintiff and then attempting to get a criminal prosecution initiated against plaintiff, defendants, each acting individually and in concert with each other, defendants' conduct was outrageous, atrocious so extreme in degree to go beyond all possible bounds of decency, and utterly intolerable in a civilized community.

96. Defendants' conduct was intentional, wanton and reckless and was done with a total disregard of the risks to plaintiff's health and safety.

97. As a direct and proximate result of the acts alleged above, plaintiff suffered severe emotional distress, humiliation, mental anguish, and physical distress.

98. The acts of defendants alleged above were willful, wanton, flagrant, malicious, oppressive, and performed with a total disregard for plaintiff's health safety and welfare and justify the award of punitive damages.

99. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

100. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

101. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

102. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Failure to Intervene

103. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 102 with the same force and effect as if more fully set forth at length herein.

104. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

105. Defendants failed to intervene to prevent the unlawful conduct described herein.

106. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

107. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

108. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

EIGHTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

109. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 108 with the same force and effect as if more fully set forth at length herein.

110. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

JURY DEMAND

111. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Ramar Pinder demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
March 5, 2020

By: /s/
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
March 5, 2020

/s/
DAVID M. HAZAN